

Sanjay Bajaj v. U.P.P.C.L.

Allahabad High Court · Division Bench · 28 March 2017 · Writ-C No. 12680 of 2017 · **Writ dismissed; petitioner relegated to clause 6.5.**

HEADNOTE

A writ petition disputing an electricity bill raised by the distribution licensee is not entertainable. The consumer must avail the remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. Petition dismissed.

FACTUAL SUMMARY

Sanjay Bajaj filed a writ petition in the Allahabad High Court against U.P. Power Corporation Ltd. and two others, disputing an electricity bill the Corporation had raised. He sought examination of that bill in writ proceedings. Counsel for the Power Corporation opposed entertainment of the petition and pointed to the statutory remedy under the Electricity Supply Code, 2005 for a consumer who objects to a bill. The Division Bench heard the matter on 28 March 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — writ not entertainable; remedy under clause 6.5

HOLDING

Where the consumer disputes a bill raised by the distribution licensee, the High Court will not entertain a writ petition; the consumer must avail the remedy provided in clause 6.5 of the Electricity Supply Code, 2005. Petition dismissed. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ petition disputing an electricity bill raised by the distribution licensee is not entertainable. The consumer must avail the remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. Petition dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

The Court declined to examine the bill on merits and left the petitioner to clause 6.5. ¶ 1